

**CHAPTER xxii.**

An Act to regulate the expenditure on capital account and lending of money by the London County Council during the financial period from the first day of April one thousand nine hundred and forty to the thirtieth day of September one thousand nine hundred and forty-one and for other purposes.

[13th June 1940.]

WHEREAS the borrowing of money by the London County Council (hereinafter referred to as "the Council") for the purposes of expenditure on capital account and of loans to bodies and persons is governed by the London County Council (Finance Consolidation) Act 1912 as amended or extended by subsequent Acts (hereinafter referred to as "the principal Act") and by Acts to be obtained by the Council for regulating such expenditure and loans during the several periods from the first day of April in any year to the thirtieth day of September in the next following year (which periods are in the principal Act and in this Act referred to severally as a "financial period"):

2 & 3 Geo. 5
c. cv.

And whereas such expenditure and loans as aforesaid are in relation to the financial period ending on the thirtieth day of September one thousand nine hundred and forty regulated by the London County Council (Money) Act 1939 :

2 & 3 Geo. 6.
c. lvi.

And whereas it is expedient that the expenditure of the Council on capital account and the lending of money by them during the financial period from the first day of April one thousand nine hundred and forty to the thirtieth day of September one thousand nine hundred and forty-one (hereinafter referred to as "the financial period 1940-1941") should be regulated as by this Act provided :

And whereas estimates have been prepared by the various committees of the Council of the amounts which may be required for the purposes of expenditure on capital account and of loans during the financial period 1940-1941 in the execution of the powers and duties respectively delegated to those committees and all those estimates have been considered by the finance committee of the Council and submitted by that committee to the Council and the estimates as so submitted have been adopted by the Council :

And whereas the sums estimated to be so required as aforesaid for expenditure on capital account during the financial period 1940-1941 are set out in Part I of the schedule to this Act :

And whereas the sums estimated to be so required as aforesaid for the purpose of loans by the Council during the financial period 1940-1941 are set out in Part II of the said schedule :

1 Edw. 8. &
1 Geo. 6.
c. xlviii. And whereas the further sums which the Treasury in pursuance of subsection (3) of section 8 (Powers as to expenditure or loans in event of insufficiency of specified amounts) of the London County Council (Money) Act 1937 may authorise the Council to expend on capital account or to lend during the financial period 1940-1941 are set out in Part III of the said schedule :

And whereas the sums specified in the said Parts I II and III of the schedule to this Act are to the extent set out in Part IV of the said schedule sums which the Council were by virtue of the said London County Council (Money) Act 1939 authorised to expend or lend but have not before the first day of April one thousand nine hundred and forty expended or lent :

And whereas it is expedient that notwithstanding the provisions of the principal Act such emergency provisions as are contained in this Act with reference to the

expenditure of money on capital account and the lending of money by the Council for any purpose arising out of war damage or in connection with measures rendered necessary or expedient by the existence of a state of war should be enacted :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. This Act may be cited for all purposes as the London County Council (Money) Act 1940 and shall be read and have effect as one with the principal Act.

Short title
and con-
struction.

2. In and for the purposes of this Act and except where the context otherwise requires—

Interpreta-
tion.

“ the Council ” means the London County Council ;

“ the principal Act ” means the London County Council (Finance Consolidation) Act 1912 as amended or extended by any subsequent Act ;

“ the financial year ” means the period from the first day of April one thousand nine hundred and forty to the thirty-first day of March one thousand nine hundred and forty-one both dates inclusive ;

“ the following six months ” means the period from the first day of April one thousand nine hundred and forty-one to the thirtieth day of September one thousand nine hundred and forty-one both dates inclusive ;

“ the financial period 1940–1941 ” means the financial year and the following six months ; and

“ the schedule ” means the schedule to this Act.

3.—(1) Subject to the provisions of this Act the purposes for which during the financial period 1940–1941 the Council may under the powers of section 4 (Power to expend money on capital account) of the principal Act expend money on capital account shall be the purposes mentioned in the second column of Part I of the schedule.

Expendi-
ture on
capital
account
during
financial
period
1940–1941.

(2) Subject to the provisions of this Act the sums which during the said period the Council may under the said powers expend on capital account shall as regards the financial year and the following six months respectively be sums which except as by the principal Act otherwise provided shall not exceed those mentioned in the sixth and seventh columns respectively of Part I of the schedule in relation to the said purposes respectively.

Amount
authorised
to be lent
to and
borrowed
by local
authorities
and others
during
financial
period
1940-1941.

4. Subject to the provisions of this Act the sums which during the financial period 1940-1941 the Council may lend under the powers of section 7 (Power to lend money to local authorities and others) of the principal Act and which the bodies and persons mentioned in that section are authorised to borrow from the Council shall as regards the financial year and the following six months respectively be sums which except as by the principal Act otherwise provided shall not exceed those specified in the second and third columns respectively of Part II of the schedule in relation to such bodies and persons respectively.

Amount of
further ex-
penditure
and loans
which Trea-
sury may
authorise in
case of in-
sufficiency.

5. The sums which the Council may be authorised by the Treasury under the powers of subsection (3) of section 8 (Powers as to expenditure or loans in event of insufficiency of specified amounts) of the London County Council (Money) Act 1937 to expend on capital account or to lend during the financial period 1940-1941 in case the amounts specified in Parts I and II of the schedule or any of those amounts are found to be insufficient shall as regards the financial year and the following six months respectively be sums not exceeding in the aggregate the amounts specified in the second and third columns respectively of Part III of the schedule.

Periods for
repayment
of loans to
certain
bodies and
persons.

6.—(1) Any money lent by the Council to governors of educational institutions or to managers of special and approved schools or to committees of school treatment centres or to governors or committees of voluntary hospitals and hostels in pursuance of powers conferred by the principal Act and this Act shall be repaid to the Council within such period or periods not exceeding sixty years from the date or respective

dates of lending the same as the Council with the approval of the Treasury may determine.

(2) Any money lent by the Council to any bodies or persons in pursuance of the provisions of the Civil Defence Act 1939 shall be repaid to the Council within a period not exceeding ten years as prescribed by that Act. 2 & 3 Geo. 6.
c. 31.

7.—(1) Notwithstanding anything in this or any other enactment and in addition to the amounts specified in this or any other annual money Act the Council may from time to time— Emergency
expenditure
or lending
for war
damage &c.

(a) expend on capital account for any purpose arising out of war damage or in connection with measures rendered necessary or expedient by the existence of a state of war;

(b) lend to any metropolitan borough council for expenditure for any such purpose;

such sums as the Treasury may approve as being necessary or desirable in connection with any statutory power or duty now or hereafter conferred or imposed on the Council or such metropolitan borough council.

(2) In this section—

“enactment” includes any regulation order rule or byelaw having the force of an enactment;

“war damage” means damage caused by or in repelling enemy action or by measures taken to avoid the spreading of the consequences of damage caused by or in repelling enemy action.

(3) The provisions of this section shall be in addition to and not in substitution for or in derogation of any other enactment conferring powers of a like character.

8. So long as the making of an issue of capital in the United Kingdom without the consent of the Treasury is prohibited by regulations made under the Emergency Powers (Defence) Act 1939 it shall not be lawful to exercise the powers of borrowing conferred by this Act without such consent. Saving for
emergency
powers of
Treasury.
2 & 3 Geo. 6.
c. 62.

The SCHEDULE referred to in the foregoing Act.

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PART I.

ESTIMATED REQUIREMENTS FROM 1ST APRIL 1940 TO 30TH SEPTEMBER 1941 FOR CAPITAL EXPENDITURE.

Acts for the Purposes of which Money may be expended. (1)	Purposes of Expenditure. (2)	Particulars in Cases in which there was a Parliamentary Estimate of Expenditure.			Estimated Requirement for Year ending 31st March 1941. (6)	Estimated Requirement for Six Months ending 30th September 1941. (7)
		Total Parlia- mentary Estimate. (3)	Expendi- ture to 31st March 1940 (Approx- imate). (4)	Revised Estimate where necessary. (5)		
1. Metropolitan Management Act 1855 and various Acts authorising improvements and works.	Construction widening or improvement of streets for facilitating the passage and traffic between different parts of the administrative county of London and contributions towards cost of such improvements contributions to cost of local improvements and expenditure upon improvements and works authorised by various Acts for which no provision is made elsewhere.	£ *	£ —	£ —	£ 181,065	£ 20,350
2. Metropolitan Fire Brigade Act 1865 and various Acts amending or extending the same.	Provision of stations and execution of other works for the London Fire Brigade.	*	—	—	48,670	—

3. Metropolis Management (Thames River Prevention of Floods) Amendment Act 1879 and various Acts relating to prevention of flooding from the river Thames.	Execution of flood prevention works.	*	—	—	—	7,500	—
4. Thames Tunnel (Blackwall) Acts 1887 and 1888.	Blackwall Tunnel—Miscellaneous works.	*	—	—	—	1,150	—
5. Local Government Act 1888 and sundry Acts relating to bridges.	Demolition of Wandsworth Bridge and construction of a new bridge.	*	—	—	—	28,080	2,800
	Construction of new Waterloo Bridge.	*	—	—	—	90,000	18,000
6. Lunacy and Mental Treatment Acts 1890 to 1930.	Acquisition of property and provision of mental hospitals and other purposes in connection with the care of persons of unsound mind.	*	—	—	—	7,000	400
7. Open Spaces Act 1906 and various Acts relating to parks open spaces gardens public walks and pleasure grounds.	Acquisition laying-out and improvement of open spaces parks gardens public walks and pleasure grounds contributions to cost thereof and other purposes connected therewith contributions towards green belt scheme.	*	—	—	—	430,240	50,000
8. Mental Deficiency Acts 1913 to 1927.	Acquisition of property provision of buildings for accommodation of mental defectives and provision of equipment.	*	—	—	—	3,500	300
	Carried forward	.	.	.	.	797,205	91,850

* The expenditure under these heads is authorised under general powers contained in the Acts named in the first column and therefore no parliamentary estimate is required.

THE SCHEDULE—continued.

(1) Acts for the Purposes of which Money may be expended.	(2) Purposes of Expenditure.	Particulars in Cases in which there was a Parliamentary Estimate of Expenditure.			(6) Estimated Requirement for Year ending 31st March 1941.	(7) Estimated Requirement for Six Months ending 30th September 1941.
		(3) Total Parlia- mentary Estimate.	(4) Expendi- ture to 31st March 1940 (Approx- imate).	(5) Revised Estimate where necessary.		
	Brought forward	£	£	£	£	£
9. London County Council (Tramways and Improve- ments) Act 1920.	Acquisition of property and execution of works in connection with widening of Cable Street.	†595,500	304,359	—	3,000	—
10. Education Act 1921 and Acts amending or ex- tending the same.	Acquisition of property provision and equip- ment of schools and other purposes.	*	—	—	123,500	10,000
11. Poor Law Act 1930.	Acquisition of property additions and altera- tions to residential schools and children's homes and mental and public assistance institutions and local offices.	*	—	—	86,000	7,120
12. London County Council (Money) Act 1930.	Repayment of local bonds for housing.	*	—	—	545,895	52,615
13. London County Council (Vauxhall Cross Improve- ment) Act 1931.	Acquisition of property and execution of works in connection with street improve- ments at Vauxhall Cross.	617,000	207,025	336,000	4,980	—
14. London County Council (General Powers) Act 1934.	Acquisition of property and execution of works in connection with Westferry Road to West India Dock Road improvement.	†145,750	14,957	—	700	—

		—	—	—	2,500	500
15. London County Council (General Powers) Act 1935.	Acquisition of property on the south bank of river Thames.	—	—	—	—	—
16. Housing Act 1936.	Acquisition of property erection of dwellings advances to persons or bodies of persons and other purposes.	*	—	—	†1,196,530	†188,950
17. London and Middlesex (Improvements &c.) Act 1936.	Acquisition of property and execution of works in connection with extension of Cromwell Road.	1,620,000	412,027	—	94,600	11,000
18. Public Health (London) Act 1936.	Acquisition of property additions and altera- tions to hospitals pathological laboratories and ambulance stations.	*	—	—	272,000	20,415
19. Public Health (London) Act 1936 and various Acts relating to main drainage.	Provision of pumping stations outfalls machinery sewers sewage treatment plant and other purposes.	*	—	—	191,800	25,760
20. London County Council (General Powers) Act 1937.	Acquisition of property and execution of works in connection with improvements at Notting Hill Gate and Westminster Bridge Road and the Western Avenue extension between Edgware Road and Marylebone Road.	2,107,000	210,662	—	218,015	38,000
	Carried forward	.	.	.	3,536,725	446,210

* The expenditure under these heads is authorised under general powers contained in the Acts named in the first column and therefore no parliamentary estimate is required.

† This figure includes the estimated cost of other purposes of the same Act.

‡ In addition to the methods of raising money authorised by the principal Act the Council are empowered by virtue of section 122 of the Housing Act 1936 with the consent of the Minister of Health to raise by the issue of bonds any sums which they have power to borrow for the purposes of that Act. The money to be raised for expenditure on capital account for housing purposes during the financial period 1940-1941 will however not exceed a total of £1,385,480.

THE SCHEDULE—continued.

Acts for the Purposes of which Money may be expended.	Purposes of Expenditure.	Particulars in Cases in which there was a Parliamentary Estimate of Expenditure.				Estimated Requirement for Year ending 31st March 1941.	Estimated Requirement for Six Months ending 30th September 1941.
		Total Parlia- mentary Estimate. (3)	Expendi- ture to 31st March 1940 (Approx- imate). (4)	Revised Estimate where necessary. (5)	(6)		
(1)	(2)	(3)	(4)	(5)	(6)	(7)	
21. London County Council (Tunnel and Improve- ments) Act 1938.	Brought forward Acquisition of property and execution of works for the improvement of the southern approach to Wandsworth Bridge.	£ 3,933,250	£ 190	£ —	£ 3,536,725	£ 446,210	
22. London County Council (General Powers) Act 1939.	Acquisition of property and execution of works for the improvement of the south bank of the river Thames and at Millbank.	†1,702,000	—	—	35,000	—	
23. London Government Act 1939.	Provision of additional office accommodation.	*	—	—	32,700	110	
24. Civil Defence Acts 1937 and 1939.	Erection of air-raid shelters on housing estates and construction of emergency water sup- plies for fire-fighting.	*	—	—	70,665	1,000	
25. Any other Act.	To provide for possible expenditure for pur- poses authorised by Parliament (whether before or at any time during the financial period) not included in the foregoing estimates for which it may be desirable that the Council should have spending power.	—	—	—	50,000	25,000	
					3,742,090	472,320	

Carried forward

* The expenditure under these heads is authorised under general powers contained in the Acts named in the first column and therefore no parliamentary estimate is required.

† This figure includes the estimated cost of other purposes of the same Act.

THE SCHEDULE—continued.

Brought forward - £4,214,410

PART II.

AMOUNTS ESTIMATED TO BE REQUIRED FOR LOANS.

Bodies and Persons to whom Money may be lent.	During Year ending 31st March 1941.	During Six Months ending 30th September 1941.
(1)	(2)	(3)
26. Metropolitan borough councils - -	£ 2,000,000	£ 1,000,000
27. Governors of educational institutions managers of special and approved schools committees of school treat- ment centres and governors or committees of voluntary hospitals and hostels - - - -	1,000	1,000
28. Sundry persons under the Small Dwellings Acquisition Acts 1899 to 1923 - - - -	1,000	1,000
29. Sundry persons under the Civil De- fence Act 1939 section 29 - -	50,000	25,000
Total - - - -	‡2,052,000	‡1,027,000

£3,079,000

‡ The provision for advances to persons or bodies of persons under the Housing Act 1936 is included under item 16 of this schedule.

PART III.

EXPENDITURE OR LOANS WHICH MAY BE AUTHORISED
BY THE TREASURY BEYOND AMOUNTS SPECIFIED IN
PARTS I AND II OF THIS SCHEDULE.

Purposes.	During Year ending 31st March 1941.	During Six Months ending 30th September 1941.
(1)	(2)	(3)
30. General enlargement of spending and lending power to provide under Treasury sanction for possible further expenditure for purposes included and possible further loans to bodies and persons mentioned in the foregoing estimates - -	£ 2,000,000	£ 1,000,000

£3,000,000

Carried forward - - - £10,293,410

THE SCHEDULE—*continued*.

Brought forward - £10,293,410

PART IV.

AMOUNTS INCLUDED IN THE FOREGOING PARTS OF THIS SCHEDULE WHICH WERE AUTHORISED BY VIRTUE OF THE LONDON COUNTY COUNCIL (MONEY) ACT 1939 TO BE EXPENDED OR LENT BUT NOT HAVING BEEN EXPENDED OR LENT BEFORE 1ST APRIL 1940 ARE INCLUDED AGAIN IN THIS ACT.

IN ORDER TO ASCERTAIN THE NET AGGREGATE NEW POWERS OF EXPENDING OR LENDING MONEY CONFERRED BY VIRTUE OF THIS ACT IT IS NECESSARY TO DEDUCT THE FOLLOWING SUMS FROM THE SUMS REFERRED TO IN THE FOREGOING PARTS OF THIS SCHEDULE.

Reference to Number of Item in aforegoing Part of this Schedule.	Purposes of Expenditure or Loan.	Amount (Approximate).
1	Metropolis Management Act 1855 and various Acts authorising improvements and works	£ 201,415
2	Metropolitan Fire Brigade Act 1865 and various Acts amending or extending the same	48,670
3	Metropolis Management (Thames River Prevention of Floods) Amendment Act 1879 &c. . . .	7,500
4	Thames Tunnel (Blackwall) Acts 1887 and 1888	1,150
5	Local Government Act 1888 and sundry Acts relating to bridges	60,880
6	Lunacy and Mental Treatment Acts 1890 to 1930	7,400
7	Open Spaces Act 1906 and various Acts relating to parks &c.	480,240
8	Mental Deficiency Acts 1913 to 1927	3,800
9	London County Council (Tramways and Improvements) Act 1920	3,000
10	Education Act 1921 &c.	133,500
11	Poor Law Act 1930	93,120
12	London County Council (Money) Act 1930	463,335
13	London County Council (Vauxhall Cross Improvement) Act 1931	4,980
14	London County Council (General Powers) Act 1934	700
15	London County Council (General Powers) Act 1935	3,000
16	Housing Act 1936	1,385,480
17	London and Middlesex (Improvements &c.) Act 1936	105,600
18	Public Health (London) Act 1936 and Local Government Act 1888	292,415
19	Public Health (London) Act 1936 and various Acts relating to main drainage	217,560
	Carried forward	3,513,745
		10,293,410

3 & 4 GEO. 6.

*London County
Council (Money) Act, 1940.*

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THE SCHEDULE—continued.

Brought forward - £10,293,410

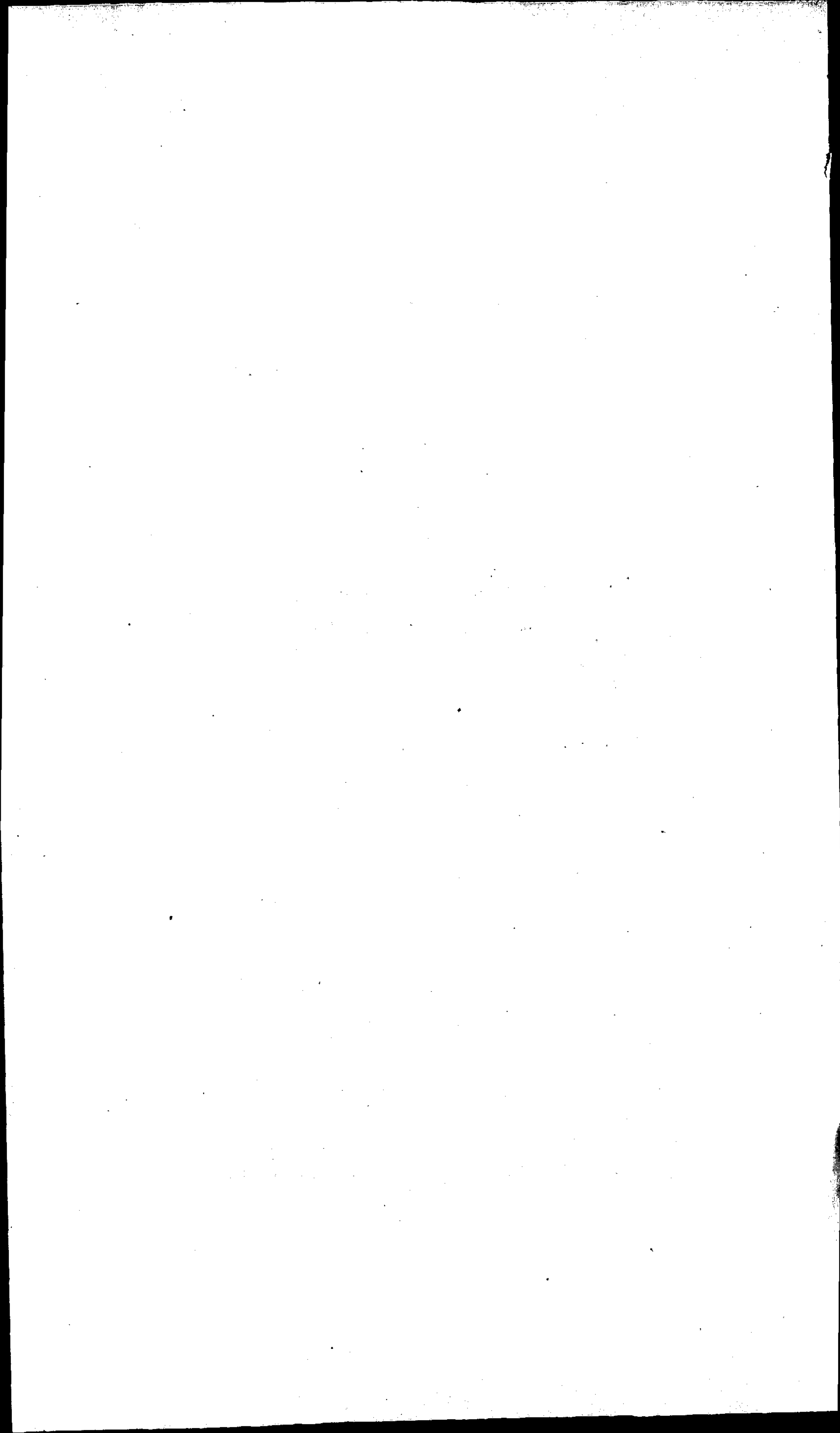
Reference to Number of Item in a foregoing Part of this Schedule.	Purposes of Expenditure or Loan.	Amount (Approximate).
	Brought forward - - -	£ 3,513,745
20	London County Council (General Powers) Act 1937 - - - - -	256,015
21	London County Council (Tunnel and Improvements) Act 1938 - - - - -	17,000
22	London County Council (General Powers) Act 1939 - - - - -	35,000
25	Any other Act - - - - -	75,000
26	Loans to metropolitan borough councils - - -	1,000,000
27	Loans to managers of special and approved schools &c. - - - - -	2,000
28	Loans to sundry persons under the Small Dwellings Acquisition Acts 1899 to 1923 - - - - -	2,000
30	General enlargement of spending and lending power under Treasury sanction - - - - -	900,000
		<u>5,800,760</u>
		<u>£5,800,760</u>

**NET AGGREGATE NEW POWERS OF EXPENDITURE OR
LOAN (FOR THE PURPOSES OF WHICH THE COUNCIL
MAY RAISE MONEY BY BORROWING OR OTHERWISE).**

For Council—	£	£	
For Year ending 31st March 1941 - - -	1,345,925		
For Six Months ending 30th September 1941 - - -	1,071,725		
	<u>2,417,650</u>		
For Loans—			
For Year ending 31st March 1941 - - -	1,050,000		
For Six Months ending 30th September 1941 - - -	1,025,000		
	<u>2,075,000</u>		
		<u>£4,492,650</u>	

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*London County
Council (Money) Act, 1940.*

3 & 4 GEO. 6.

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